

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                            |                           |                                                        |                                    |                                 |
|---------------------------------------------------|------------------------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Rachel Murgio                    | Team:<br>Squad #02                                         | CCRB Case #:<br>202002492 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                            |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 03/13/2020 10:30 PM   | Location of Incident:<br>Bergen Street and Eastern Parkway | 18 Mo. SOL<br>4/30/2022   | Precinct:<br>73                                        |                                    |                                 |
| Date/Time CV Reported<br>Wed, 03/18/2020 12:47 PM | CV Reported At:<br>IAB                                     | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 04/02/2020 11:57 AM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)         | Shield | TaxID  | Command |
|----------------------------|--------|--------|---------|
| 1. POM Volodymyr Burdeynny | 14915  | 954580 | PSA 2   |
| 2. POM Kevin Padilla       | 16328  | 959868 | PSA 2   |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. POM Abir Noor    | 21625     | 959847 | PSA 2    |
| 2. POM Ibrahim Adam | 20396     | 958214 | PSA 2    |

| Officer(s)                  | Allegation                                                                                                        | Investigator Recommendation |
|-----------------------------|-------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Volodymyr Burdeynny | Abuse: Police Officer Volodymyr Burdeynny stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.  | A . Exonerated              |
| B . POM Kevin Padilla       | Abuse: Police Officer Kevin Padilla stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.        | B . Exonerated              |
| C . POM Volodymyr Burdeynny | Abuse: Police Officer Volodymyr Burdeynny refused to provide his shield number to § 87(2)(b)                      | C . Unfounded               |
| D . POM Kevin Padilla       | Abuse: Police Officer Kevin Padilla refused to provide his name to § 87(2)(b)                                     | D . Unfounded               |
| E . POM Kevin Padilla       | Abuse: Police Officer Kevin Padilla refused to provide his shield number to § 87(2)(b)                            | E . Unfounded               |
| F . POM Volodymyr Burdeynny | Abuse: Police Officer Volodymyr Burdeynny frisked § 87(2)(b)                                                      | F . Exonerated              |
| G . POM Volodymyr Burdeynny | Abuse: Police Officer Volodymyr Burdeynny searched § 87(2)(b)                                                     | G . Exonerated              |
| H . POM Volodymyr Burdeynny | Abuse: Police Officer Volodymyr Burdeynny searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. | H . Exonerated              |
| I . POM Kevin Padilla       | Abuse: Police Officer Kevin Padilla searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.       | I . Exonerated              |

### Case Summary

On March 18, 2020, § 87(2)(b) filed this complaint with IAB via telephone, generating Original Log #2020-08448. The complaint was forwarded to the CCRB, where it was received on April 2, 2020.

On March 13, 2020, § 87(2)(b) was driving a grey Dodge Charger with his girlfriend, § 87(2)(b) in the passenger's seat. Their vehicle was stopped at Bergen Street and Eastern Parkway in Brooklyn by Police Officer Kevin Padilla and Police Officer Volodymyr Burdeynny of PSA 2 (**Allegations A and B: Abuse of Authority – Vehicle stop – Exonerated**). During the subsequent interaction, § 87(2)(b) asked Police Officer Burdeynny and Police Officer Padilla for their names and shield numbers, and Police Officer Burdeynny allegedly provided the wrong shield number while Police Officer Padilla allegedly provided the wrong name and never provided his shield number (**Allegations C and E: Abuse of Authority – Refusal to provide name – Unfounded and Allegations D and F: Abuse of Authority – Refusal to provide shield number – Unfounded**). The officers had § 87(2)(b) exit his vehicle. Police Officer Burdeynny frisked § 87(2)(b) then reached into his pockets (**Allegation G: Abuse of Authority – Frisk – Exonerated and Allegation H: Abuse of Authority – Search (of person) – Exonerated**). The officers then had § 87(2)(b) exit the vehicle as well, and Police Officer Burdeynny and Police Officer Padilla searched the vehicle (**Allegations I and J: Abuse of Authority – Vehicle search – Exonerated**). Marijuana was seized from § 87(2)(b) and vouchered, but he was not issued any summonses.

Body-worn camera (BWC) footage was obtained for this case. It is linked to IAs #75-77 (Board Review 01-03) and summarized in IA #80 (Board Review 04). § 87(2)(b) submitted four videos filmed by himself and § 87(2)(b) during the incident. These are linked to IAs #32-35 (Board Review 05-08) and summarized in IA #44 (Board Review 09).

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Volodymyr Burdeynny stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**

**Allegation (B) Abuse of Authority: Police Officer Kevin Padilla stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**

§ 87(2)(b) provided an initial telephone statement on April 14, 2020 (Board Review 10, 11), was interviewed later on April 14, 2020 (Board Review 12), and then provided a follow-up telephone statement on June 10, 2020 (Board Review 13). § 87(2)(b) provided a telephone statement on July 1, 2020 (Board Review 14). Police Officer Kevin Padilla was interviewed at the CCRB on January 8, 2021 (Board Review 15). Police Officer Volodymyr Burdeynny was interviewed at the CCRB on January 28, 2021 (Board Review 16).

It is undisputed that Police Officer Burdeynny and Police Officer Padilla stopped § 87(2)(b)'s vehicle at Bergen Street and Eastern Parkway.

§ 87(2)(b) stated that all the parts of his vehicle were stock, and the car was in good working order. He denied committing any traffic violations prior to the officers appearing. He drove with the windows shut and denied that there was a smell of marijuana in the car. Neither § 87(2)(b) nor § 87(2)(b) had consumed any marijuana that day. He denied that either officer told him why they had pulled him over.

§ 87(2)(b) stated that an officer or officers said during the incident that § 87(2)(b) had failed to signal, though § 87(2)(b) denied that this was true and believed that officers were “picking on” § 87(2)(b).

§ 87(2)(b) for no reason.

Police Officer Padilla did not have an independent recollection of why the officers pulled § 87(2)(b) over. However, his memo book notes that § 87(2)(b) blocked a crosswalk, failed to stop at a stop sign, and drove with excessive speed (Board Review 17). Police Officer Padilla told § 87(2)(b) why the officers stopped him when he approached the car. Police Officer Padilla used his discretion to warn and admonish § 87(2)(b) rather than issuing him a summons.

Police Officer Burdeynny did not recall many of the specifics of his observations of § 87(2)(b)'s vehicle infractions. His memo book lists blocking a crosswalk, failing to stop at a stop sign, and speeding as the reasons § 87(2)(b) was stopped (Board Review 17), and Police Officer Burdeynny testified that he observed these actions. Police Officer Burdeynny stated that he did not issue summonses to § 87(2)(b) because he had run out of summonses.

Police Officer Padilla's BWC video captures him approaching § 87(2)(b)'s window at the start of the interaction and stating that he pulled § 87(2)(b)'s car over because he stopped "past the line" at a traffic light and took some turns too quickly. BWC filmed by Police Officer Ibrahim Adam of PSA 2 captures a conversation among Police Officer Adam, Police Officer Burdeynny and Police Officer Padilla, in which the officers discuss other commands who may have summonses.

New York State Vehicle and Traffic Law Article 29 § 1171 instructs drivers that when approaching a stop sign, they must stop at a clearly marked stop line or before entering the crosswalk at the near side of the intersection they are entering (Board Review 21). Disobeying a stop sign is a violation.

New York State Vehicle and Traffic Law Article 30 § 1180 instructs drivers to obey speed limits and not to drive vehicles at a speed greater than is "reasonable and prudent" (Board Review 22).

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A and B** be exonerated.

**Allegation (C) Abuse of Authority: Police Officer Volodymyr Burdeynny refused to provide his shield number to § 87(2)(b)**

§ 87(2)(b) stated that Police Officer Burdeynny at some point told him his name but then gave him what § 87(2)(b) believed was a fake shield number. Police Officer Burdeynny never allowed § 87(2)(b) to see his shield. At the end of the incident, Police Officer Burdeynny gave § 87(2)(b) a business card with his name and shield number on it (Board Review 20).

Police Officer Burdeynny testified that § 87(2)(b) asked for his name and shield number multiple times during the incident. Police Officer Burdeynny provided his name and shield number to § 87(2)(b) verbally during the incident and via his RTKA contact card at the end of the incident. The RTKA card included Police Officer Burdeynny's name, shield number, command, and his command's phone number.

Police Officer Padilla testified that he heard Police Officer Burdeynny state his name and shield number during the incident.

BWC filmed by both Police Officer Padilla and Police Officer Burdeynny during the incident captures Police Officer Burdeynny stating his own name and shield number multiple times for § 87(2)(b) during the incident, as well as giving a contact card at the end of the incident. At least once, § 87(2)(b) mishears Police Officer Burdeynny's name and shield number and repeats the information incorrectly to § 87(2)(b) who is filming from within the car. § 87(2)(b) never indicates that he has trouble reading the business card he receives.

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation C** be **unfounded**.

**Allegation (D) Abuse of Authority: Police Officer Kevin Padilla refused to provide his name to § 87(2)(b)**

**Allegation (E) Abuse of Authority: Police Officer Kevin Padilla refused to provide his shield number to § 87(2)(b)**

§ 87(2)(b) stated that during the incident, Police Officer Padilla initially refused to provide his "information," then later told him that his name was Police Officer "Burdeynny." § 87(2)(b) denied that he ever obtained Police Officer Padilla's name or shield number.

Police Officer Padilla stated that he introduced himself upon approaching § 87(2)(b)'s car. He did not have a further recollection of § 87(2)(b) requesting his name and shield number, or of providing his name and shield number to § 87(2)(b) following his initial approach. Police Officer Padilla denied that any officer at any point refused to give a name or shield number to § 87(2)(b).

Police Officer Burdeynny testified that Police Officer Padilla provided his name and shield number to § 87(2)(b) during the incident.

Police Officer Padilla's BWC from the incident captures him introducing himself by name to § 87(2)(b) at the beginning of their interaction. Later in the video, Police Officer Padilla states his name again, though § 87(2)(b) mishears it and believes that both officers gave him the same name. Police Officer Padilla restates his name (and Police Officer Burdeynny's) and verbally gives § 87(2)(b) his shield number, as well. § 87(2)(b) repeats Police Officer Padilla's shield number back to him correctly, and Police Officer Padilla tells him he is correct.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations D and E** be **unfounded**.

**Allegation (F) Abuse of Authority: Police Officer Volodymyr Burdeynny frisked § 87(2)(b)**

**Allegation (G) Abuse of Authority: Police Officer Volodymyr Burdeynny searched § 87(2)(b)**

**Allegation (H) Abuse of Authority: Police Officer Volodymyr Burdeynny searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**

**Allegation (I) Abuse of Authority: Police Officer Kevin Padilla searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**

It is undisputed that Police Officer Burdeynny frisked and searched § 87(2)(b)'s person. It is further undisputed that Police Officer Burdeynny recovered marijuana during his search. It is undisputed that Police Officer Burdeynny and Police Officer Padilla also searched § 87(2)(b)'s vehicle.

§ 87(2)(b) denied that there was a smell of marijuana in his vehicle. He stated that Police Officer Burdeynny recovered marijuana from his pocket. He did not mention other marijuana within his car during the incident.

§ 87(2)(b) stated that the officers searched § 87(2)(b)'s car "for no reason."

Police Officer Padilla testified that when he approached § 87(2)(b)'s vehicle, he smelled a strong odor of marijuana in a leafy or vegetative state. Shortly after smelling the marijuana odor, Police Officer Padilla saw marijuana in plain view within the cab of § 87(2)(b)'s car, though he did not recall what form this marijuana was in. After making these observations, Police Officer Padilla asked § 87(2)(b) to exit his vehicle. § 87(2)(b) exited his vehicle. Police Officer Padilla searched the vehicle and believed that Police Officer Burdeynny frisked and searched § 87(2)(b) due to the odor of marijuana emanating from § 87(2)(b)'s vehicle and the marijuana visible in plain view within the vehicle.

Police Officer Burdeynny testified that while he stood on the passenger's side of § 87(2)(b)'s vehicle, he observed marijuana in plain view within the vehicle (most likely in the central console) in the form of a mostly-smoked marijuana cigarette and marijuana in a plastic bag. When one of the officers told § 87(2)(b) that they were seeing marijuana in the car, § 87(2)(b) confirmed that it was marijuana. After Police Officer Burdeynny walked to § 87(2)(b)'s driver's side door, he smelled marijuana while talking to § 87(2)(b). He did not recall whether the scent was of burnt marijuana or vegetative/raw marijuana but stated during his interview that it was "probably both." Police Officer Burdeynny frisked and searched § 87(2)(b) and searched his car for the purpose of finding additional narcotics/marijuana; there was no other reason why Police Officer Burdeynny frisked or searched § 87(2)(b) or searched his car.

BWC filmed by Police Officer Padilla during the incident captures Police Officer Padilla asking § 87(2)(b) from outside the car whether something inside his car is marijuana. § 87(2)(b) says that it is. Later in the video, Police Officer Burdeynny tells § 87(2)(b) that he has narcotics visible in his car, and § 87(2)(b) says that it is marijuana.

People v. Chestnut, 43 A.D.2d 260 (1974) states that the smell of marijuana smoke emanating from a defendant's automobile suffices to provide police officers with probable cause to search the vehicle and defendant (Board Review 23).

People v. Harrington, 30 A.D.3d 1084 (2006) states that the smell of marijuana, coupled with marijuana residue and a partially smoked marijuana cigarette visible in plain view within a vehicle, gives officers probable cause to search the vehicle and its contents (Board Review 24).

People v. Pena, 209 A.D.2d 744 (1994) states that once an officer sees marijuana in plain view within a vehicle, they have a right to search the vehicle (Board Review 25).

§ 87(2)(g)

It is therefore recommended that **Allegations F, G, H, and I** be **exonerated**.

### **Civilian and Officer CCRB Histories**

- § 87(2)(b) has been a party to one other CCRB complaint and has been named a victim in 4 other allegations (Board Review 27).
  - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 28).
- Police Officer Burdeynny has been a member of service for seven years and has been a subject in nine CCRB complaints and 36 allegations, of which one has been substantiated.
  - Case #201801245 involved a substantiated allegation of a vehicle search against Police Officer Burdeynny. The Board recommended Command Discipline A, and the NYPD imposed Formalized Training.
  - § 87(2)(g)
- Police Officer Padilla has been a member of service for five years and has been a subject in six CCRB complaints and 20 allegations, of which five have been substantiated in one case.
  - Case #201904359 involved substantiated allegations of failure to provide an RTKA card, a frisk, a search (of a person), a stop, and a strip search. The Board recommended Charges, and the NYPD has not yet imposed discipline.
  - § 87(2)(g)

### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) declined to mediate this complaint.
  - As of February 23, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in relation to this complaint (Board Review 26).
  - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Squad No.: 2

Investigator: Rachel Murgu Inv. Rachel Murgu 02/25/2021  
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Alexander Opoku-Agyemang 2/25/2021  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date